

THE GENERAL ASSEMBLY OF PENNSYLVANIA

HOUSE BILL

No. 2109 Session of
2025

INTRODUCED BY KHAN, MAJOR, INGLIS, GREEN, SCOTT, DAVIDSON,
SOLOMON, POWELL, SMITH-WADE-EL, RIVERA, OTTEN, KENYATTA,
GUENST, WAXMAN, D. WILLIAMS, HILL-EVANS, CIRESI, MAYES,
SANCHEZ, CEPEDA-FREYTIZ, MADDEN, K. HARRIS, WARREN AND CURRY,
DECEMBER 22, 2025

AS REPORTED FROM COMMITTEE ON HOUSING AND COMMUNITY DEVELOPMENT,
HOUSE OF REPRESENTATIVES, AS AMENDED, APRIL 13, 2026

AN ACT

1 Amending Title 53 (Municipalities Generally) of the Pennsylvania
2 Consolidated Statutes, in preemptions, providing for
3 prohibiting occupancy limits.

4 The General Assembly of the Commonwealth of Pennsylvania
5 hereby enacts as follows:

6 Section 1. Title 53 of the Pennsylvania Consolidated
7 Statutes is amended by adding a section to read:

8 § 307. Prohibiting occupancy limits.

9 (a) Prohibition.--A local government unit may not limit the
10 number of individuals who may live together in a single dwelling
11 based on familial relationship and BUT may limit the number of <--
12 individuals who may live together in a single dwelling based
13 only on one of the following: <--

14 (1) Demonstrated ON DEMONSTRATED health and safety <--
15 standards, including the International Building Code <--
16 standards, ANY APPLICABLE BUILDING OR CONSTRUCTION CODES AND <--

1 STANDARDS PROMULGATED BY REGULATION UNDER THE ACT OF NOVEMBER
2 10, 1999 (P.L.491, NO.45), KNOWN AS THE PENNSYLVANIA
3 CONSTRUCTION CODE ACT, fire code regulations or Department of
4 Environmental Protection wastewater and water quality
5 standards.

6 ~~(2) Federal, State, local or municipal affordable~~ <--
7 ~~housing program guidelines.~~

8 (b) Definitions.--As used in this section, the following
9 words and phrases shall have the meanings given to them in this
10 subsection unless the context clearly indicates otherwise:

11 "Familial relationship." An individual's connection to one
12 or more other individuals through blood, marriage, adoption or
13 foster care.

14 "Local government unit." A county, city, borough,
15 incorporated town, township, home rule municipality, optional
16 plan municipality or optional charter municipality in this
17 Commonwealth.

18 Section 2. This act shall take effect in 60 days.